

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA
FORT LAUDERDALE DIVISION**

EUCAL WATSON,

CASE NO:

Plaintiff,

v.

UNITED STATES OF AMERICA,
UNITED STATES POSTAL SERVICE,
AND LESLY CAYO,

Defendants.

_____ /

COMPLAINT

JURISDICTION

1. This action is being filed under the Federal Tort Claims Act ("FTCA") 28 U.S.C. § 2671, and 28 U.S.C. §§ 1331 and 1346(b), for an action on a monetary claim for injury caused by the negligent or wrongful act or omission of any employee of the government (39 C.F.R. § 912).

2. On January 20, 2021, Plaintiff, **EUCAL WATSON**, submitted an Administrative Claim set forth below to the United States Postal Service (USPS), a federally recognized entity ("USPS") (see Exhibit A).

3. Over six months have elapsed, and all conditions precedent to a Federal Tort Claims Act have been met and satisfied with the attached USPS Denial of Claim (see Exhibit B).

4. Venue is properly within this District under 28 U.S.C. § 1402(b) as PLAINTIFF resides and the acts complained of occurred in the Southern District of Florida.

PARTIES

5. Plaintiff, EUCAL WATSON, is a resident of Broward County, Florida.

6. The UNITED STATES OF AMERICA, the UNITED STATES POSTAL SERVICE, and LESLY CAYO are appropriate Defendants under the Federal Tort Claims Act.

7. Defendant, LESLY CAYO, is an employee with the USPS and is being sued both in his individual capacity and as an employee of USPS.

ALLEGATIONS COMMON TO ALL COUNTS

8. On or about April 24, 2020, Defendant USPS owned a motor vehicle to wit: a 2000 Postal Service Motor Vehicle (VIN NUMBER: 1GBCS10E312300265).

9. At all times material hereto, Defendant CAYO, was an employee of the USPS, an agency of the Federal Government, and was driving its 2000 Postal Service Motor Vehicle (VIN NUMBER: 1GBCS10E312300265) with USPS', permission and consent and while in the course and scope of his employment as a postal service worker.

10. On April 24, 2020, EUCAL WATSON ("WATSON") was the seat-belted driver of his Toyota Tundra truck on Sunset Strip in the City of Sunrise, Broward County, Florida, when the 2000 Postal Service Motor Vehicle (VIN NUMBER: 1GBCS10E312300265) owned by Defendant USPS, and driven by its employee, Defendant, LESLY CAYO ("CAYO"), negligently and carelessly caused a collision and impact with the vehicle owned and operated by WATSON.

COUNT 1: ACTION FOR NEGLIGENCE AGAINST

LESLY CAYO, INDIVIDUALLY AND AS AGENT OF USPS

Plaintiff herein readopts and re-alleges each and every allegation contained in the allegations common to all counts as if same were fully set forth herein and further says:

11. On or about April 24, 2020, (*at that time*) the Plaintiff, EUCAL WATSON, was the seat-belted driver of a 2012 Toyota Tundra, which was traveling eastbound direction of Sunset Strip, in the City of Sunrise, County of Broward, State of Florida.

12. At that time, Defendant, LESLY CAYO, while acting in the course and scope of his employment with the USPS, was operating a 2000 Postal service vehicle in a northbound direction on NW 99th Way in the City of Sunrise, County of Broward, State of Florida.

13. At all material times Defendant, LESLY CAYO, had a duty to exercise due care and caution in the operation of his motor vehicle while having due regard for traffic and use of the roadway.

14. At that time Defendant, LESLY CAYO, negligently drove his automobile into the PLAINTIFF, WATSON's vehicle, causing it to violently collide into the curb of the center median and overturn on its driver's side in the westbound lanes of Sunset Strip causing Plaintiff to suffer personal injuries.

15. The Defendant, LESLY CAYO, was then and there guilty of one or more of the following negligent acts or omissions:

- a. Negligently and carelessly operating his motor vehicle without due regard for other vehicles rightfully and lawfully along the way;
- b. Negligently and carelessly operating his motor vehicle without sufficient control for conditions prevailing along said street;
- c. Failing to stop his motor vehicle in time to avoid a collision, where he had ample time to avoid it;
- d. Driving his motor vehicle in disregard of the prevailing road, weather, and traffic conditions, so as to constitute a driving hazard;

e. Negligently failing to yield right of way and colliding into Plaintiff's vehicle, in violation of Florida Statute § 316.121; and,

f. Failing to keep a proper lookout for other vehicles along the roadway.

16. As a direct and proximate result of one or more of the aforesaid negligent acts or omissions, Plaintiff was injured in and about his head, neck, back, body and limbs, and as a direct result thereof, the Plaintiff has in the past suffered and will in the future suffer great pain and anguish of body and mind, and the injuries complained of by him are permanent.

17. That as a further direct and proximate result of the negligence of Defendant CAYO, the Plaintiff, EUCAL WATSON, has in the past undergone and will in the future undergo painful and extensive medical care and treatment, and has in the past and will in the future incur medical bills and expenses attendant to his injuries, as aforesaid.

18. That as a further and direct and proximate result of the negligence of Defendant CAYO, the Plaintiff, EUCAL WATSON, has in the past sustained a loss of earnings and will in the future suffer lost earnings capacity.

WHEREFORE, the Plaintiff, EUCAL WATSON, prays for damages against the Defendant, LESLY CAYO, individually and as agent of the UNITED STATES POSTAL SERVICE, and the UNITED STATES OF AMERICA in a sum of money in excess of the jurisdictional amount of Seventy-Five Thousand Dollars (\$75,000.00), plus his attorney fees and costs of this action and any other such relief deemed just and equitable.

COUNT II: AS AND FOR A CAUSE OF ACTION AGAINST UNITED STATES POSTAL SERVICE, A FEDERAL GOVERNMENT AGENCY FOR VICARIOUS LIABILITY

Plaintiff herein readopts and realleges each and every allegation contained in the allegations common to all counts as if same were fully set forth herein and further says:

19. On or about April 24, 2020, and at the time of the collision with Plaintiff as heretofore described, Defendant, CAYO, was acting within the scope of his employment with Defendant UNITES STATES POSTAL SERVICE and the UNITED STATES OF AMERICA.

20. That at the time and place aforesaid, Defendant USPS owned a motor vehicle, a 2000 Postal Service Vehicle, that was operated with its permission and consent by, LESLY CAYO, an employee of its agency, USPS. Thus, Defendant USPS is vicariously liable for employee CAYO'S negligence under Florida's Dangerous Instrumentality Doctrine.

21. Under the Federal Tort Claims Act, Defendant USPS is liable for the above-described actions of its agent, LESLY CAYO, as he was acting within the scope and during his employment with the UNITED STATES POSTAL SERVICE, a federally recognized agency of the UNITED STATES OF AMERICA.

WHEREFORE, Plaintiff respectfully requests this Court to award compensatory damages against the UNITED STATES POSTAL SERVICE, a Federal Government Agency, and the UNITED STATES OF AMERICA based upon the negligent acts of its agent LESLY CAYO, in a sum of money in excess of the jurisdictional amount of Seventy-Five Thousand Dollars (\$75,000.00) plus his attorney fees and costs of this action and any such other relief to be deemed just and equitable.

COUNT III: AS AND FOR A CAUSE OF ACTION AGAINST THE
UNITED STATES OF AMERICA

Plaintiff herein adopts and realleges each and every allegation contained in the allegations common to all counts as if same were fully set forth herein and further say:

22. This action is brought pursuant to Federal Tort Claims Act, ("FTCA") 28 U.S.C. § 2671, and, 28 U.S.C. § 1331 and 1346(b), for an action on a monetary claim for injury caused by the negligent or wrongful act or omission of any employee of the government (32 C.F.R. §

750.21); the Plaintiff resides in the above judicial district, and that act and omissions herein complained of occurred in said judicial district.

23. Under the FTCA, the United States Postal Service and its employees, including Lesly Cayo, are deemed to be federal employees and a part of the United States Postal Service pursuant to 28 U.S.C. § 2671, 28 U.S.C. § 2680(b) and 28 U.S.C. § 1346(b)(1), which requires that all claims against the United States Postal Service, be deemed and brought against the United States. 39 U.S.C § 409(c).

24. On or about April 24, 2020, hereinafter complained of, the Defendant, UNITED STATES OF AMERICA, owned a certain motor vehicle which was being operated by an employee acting within the scope of employment.

25. At said time and place, EUCAL WATSON, the Plaintiff was operating an automobile traveling eastbound direction of Sunset Strip, in the City of Sunrise, County of Broward, State of Florida.

26. At said time and place the UNITED STATES OF AMERICA, the Defendant, by its employees, carelessly and negligently maintained, drove and operated its said motor vehicle.

27. As a direct and proximate result of the negligence of the Defendant, said motor vehicle collided, and the Plaintiff was thereby injured.

28. WHEREFORE, Plaintiff respectfully requests this Court to award compensatory damages against UNITED STATES POSTAL SERVICE, an agency of the UNITED STATES OF AMERICA, and the UNITED STATES OF AMERICA based upon the negligent acts of its agent (USPS employee) LESLY CAYO, in in a sum of money in excess of the jurisdictional amount of Seventy-Five Thousand Dollars (\$75,000.00) plus his attorney fees and costs of this action and any such other relief to be deemed just and equitable.

Respectfully submitted,

By: /s/ Diana Santa Maria

Diana Santa Maria

FL Bar No. 473340

diana@santamarialaw.net

Law Offices of Diana Santa Maria, P.A.

University Place, Suite 205-C

5220 South University Drive

Fort Lauderdale, FL 33328

Telephone: (954) 434-1077

Facsimile: (954) 434-4462

Attorneys for Plaintiff,

EUCAL WATSON

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing was served by electronic mail on all counsel or parties of record on the Service List below.

/s/ Diana Santa Maria

Signature of Filer

SERVICE LIST

Diana Santa Maria, Esq.

diana@santamarialaw.net

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Facsimile: (954)434-4462

Attorneys for Plaintiff

EUCAL WATSON

CLAIM FOR DAMAGE, INJURY, OR DEATH		INSTRUCTIONS: Please read carefully the instructions on the reverse side and supply information requested on both sides of this form. Use additional sheet(s) if necessary. See reverse side for additional instructions.		FORM APPROVED OMB NO. 1105-0008			
1. Submit to Appropriate Federal Agency: USPS National Tort Center 1720 Market Street, Room 2400 St. Louis, MO 63155-9948			2. Name, address of claimant, and claimant's personal representative if any. (See instructions on reverse). Number, Street, City, State and Zip code. <table style="width: 100%;"> <tr> <td style="width: 50%; vertical-align: top;"> CLAIMANT: Eucal E. Watson 8331 NW 54th Street Lauderhill, FL 33351 </td> <td style="width: 50%; vertical-align: top;"> PERSONAL REPRESENTATIVE: Diana Santa Maria, Esq. of Law Offices of Diana Santa Maria, P.A. 5220 S University Drive, Ste 205C Fort Lauderdale, FL 33328 </td> </tr> </table>			CLAIMANT: Eucal E. Watson 8331 NW 54th Street Lauderhill, FL 33351	PERSONAL REPRESENTATIVE: Diana Santa Maria, Esq. of Law Offices of Diana Santa Maria, P.A. 5220 S University Drive, Ste 205C Fort Lauderdale, FL 33328
CLAIMANT: Eucal E. Watson 8331 NW 54th Street Lauderhill, FL 33351	PERSONAL REPRESENTATIVE: Diana Santa Maria, Esq. of Law Offices of Diana Santa Maria, P.A. 5220 S University Drive, Ste 205C Fort Lauderdale, FL 33328						
3. TYPE OF EMPLOYMENT ☐ MILITARY ☒ CIVILIAN	4. DATE OF BIRTH 03/26/1968	5. MARITAL STATUS Widowed	6. DATE AND DAY OF ACCIDENT Friday, April 24, 2020	7. TIME (A.M. OR P.M.) 05:44 P.M.			
8. BASIS OF CLAIM (State in detail the known facts and circumstances attending the damage, injury, or death, identifying persons and property involved, the place of occurrence and the cause thereof. Use additional pages if necessary). On April 24, 2020, Claimant, Eucal Watson was driving eastbound on Sunset Strip approaching the intersection of NW 99th Way and had the right of way. At the same time, USPS Driver Lesly G. Cayo was traveling northbound on NW 99th Way, which has a stop sign, Cayo failed to yield the right of way and attempted to turn left onto Sunset Strip (to head west) and crashed into the rear quarter panel of Claimant's truck, causing his vehicle to collide into the center median curb and continue to travel over the center median. This ultimately caused his vehicle to overturn onto its driver's side ending up in the Westbound lanes of Sunset Strip. (See Photos from the scene.). Claimant, suffered injuries and was transported by Sunrise Fire Rescue to the hospital, Westside Regional Medical Center, to address his injuries.							
9. PROPERTY DAMAGE							
NAME AND ADDRESS OF OWNER, IF OTHER THAN CLAIMANT (Number, Street, City, State, and Zip Code). SAME AS CLAIMANT							
BRIEFLY DESCRIBE THE PROPERTY, NATURE AND EXTENT OF THE DAMAGE AND THE LOCATION OF WHERE THE PROPERTY MAY BE INSPECTED. (See instructions on reverse side). Police report states \$15,000.00 worth of damage done to claimant's vehicle. The vehicle was towed by WESTWAY TOWING to 3681 W Oakland Park Blvd, Lauderdale Lakes, FL 33311. Vehicle repair was handled by PIP Insurance (Infinity Insurance) on May 15, 2020.							
10. PERSONAL INJURY/WRONGFUL DEATH							
STATE THE NATURE AND EXTENT OF EACH INJURY OR CAUSE OF DEATH, WHICH FORMS THE BASIS OF THE CLAIM. IF OTHER THAN CLAIMANT, STATE THE NAME OF THE INJURED PERSON OR DECEDENT. Claimant, Eucal Watson, is injured in and about, head, neck, back, body and limbs. Specifically, he has been diagnosed with headaches, muscle spasms, lumbar herniated disc, lumbar synovitis, lumbar radiculopathy, left shoulder rotator cuff partial thickness tear, left shoulder labrum tear, myofascial pain syndrome, left shoulder derangement and bilateral SI lateral joint dysfunction. This is causing him to suffer from headaches, muscle spasms, back pain, neck pain, and shoulder pain.							
11. WITNESSES							
NAME		ADDRESS (Number, Street, City, State, and Zip Code)					
NONE		NONE					
12. (See instructions on reverse). AMOUNT OF CLAIM (in dollars)							
12a. PROPERTY DAMAGE NONE	12b. PERSONAL INJURY \$500,000.00	12c. WRONGFUL DEATH NONE	12d. TOTAL (Failure to specify may cause forfeiture of your rights). \$500,000.00				
I CERTIFY THAT THE AMOUNT OF CLAIM COVERS ONLY DAMAGES AND INJURIES CAUSED BY THE INCIDENT ABOVE AND AGREE TO ACCEPT SAID AMOUNT IN FULL SATISFACTION AND FINAL SETTLEMENT OF THIS CLAIM.							
13a. SIGNATURE OF CLAIMANT (See instructions on reverse side).			13b. PHONE NUMBER OF PERSON SIGNING FORM	14. DATE OF SIGNATURE			
CIVIL PENALTY FOR PRESENTING FRAUDULENT CLAIM The claimant is liable to the United States Government for a civil penalty of not less than \$5,000 and not more than \$10,000, plus 3 times the amount of damages sustained by the Government. (See 31 U.S.C. 3729).			CRIMINAL PENALTY FOR PRESENTING FRAUDULENT CLAIM OR MAKING FALSE STATEMENTS Fine, imprisonment, or both. (See 18 U.S.C. 287, 1001.)				

INSURANCE COVERAGE

In order that subrogation claims may be adjudicated, it is essential that the claimant provide the following information regarding the insurance coverage of the vehicle or property.

15. Do you carry accident Insurance? ☒ Yes If yes, give name and address of insurance company (Number, Street, City, State, and Zip Code) and policy number. ☐ No
 Infinity Insurance Company
 PO BOX 830807
 Birmingham, AL 35283
 Policy No.: 509800011258001

16. Have you filed a claim with your insurance carrier in this instance, and if so, is it full coverage or deductible? ☒ Yes ☐ No
 Deductible \$1,000.00

18. If a claim has been filed with your carrier, what action has your insurer taken or proposed to take with reference to your claim? (It is necessary that you ascertain these facts).
 Infinity has taken care of repairing the vehicle and is covering medical payments under claimant's PIP benefits.

19. Do you carry public liability and property damage insurance? ☒ Yes If yes, give name and address of insurance carrier (Number, Street, City, State, and Zip Code). ☐ No
 SAME AS ACCIDENT INSURANCE

INSTRUCTIONS

Claims presented under the Federal Tort Claims Act should be submitted directly to the "appropriate Federal agency" whose employee(s) was involved in the incident. If the incident involves more than one claimant, each claimant should submit a separate claim form.

Complete all items - Insert the word NONE where applicable.

A CLAIM SHALL BE DEEMED TO HAVE BEEN PRESENTED WHEN A FEDERAL AGENCY RECEIVES FROM A CLAIMANT, HIS DULY AUTHORIZED AGENT, OR LEGAL REPRESENTATIVE, AN EXECUTED STANDARD FORM 95 OR OTHER WRITTEN NOTIFICATION OF AN INCIDENT, ACCOMPANIED BY A CLAIM FOR MONEY

Failure to completely execute this form or to supply the requested material within two years from the date the claim accrued may render your claim invalid. A claim is deemed presented when it is received by the appropriate agency, not when it is mailed.

If instruction is needed in completing this form, the agency listed in item #1 on the reverse side may be contacted. Complete regulations pertaining to claims asserted under the Federal Tort Claims Act can be found in Title 28, Code of Federal Regulations, Part 14. Many agencies have published supplementing regulations. If more than one agency is involved, please state each agency.

The claim may be filled by a duly authorized agent or other legal representative, provided evidence satisfactory to the Government is submitted with the claim establishing express authority to act for the claimant. A claim presented by an agent or legal representative must be presented in the name of the claimant. If the claim is signed by the agent or legal representative, it must show the title or legal capacity of the person signing and be accompanied by evidence of his/her authority to present a claim on behalf of the claimant as agent, executor, administrator, parent, guardian or other representative.

If claimant intends to file for both personal injury and property damage, the amount for each must be shown in item number 12 of this form.

DAMAGES IN A **SUM CERTAIN** FOR INJURY TO OR LOSS OF PROPERTY, PERSONAL INJURY, OR DEATH ALLEGED TO HAVE OCCURRED BY REASON OF THE INCIDENT. THE CLAIM MUST BE PRESENTED TO THE APPROPRIATE FEDERAL AGENCY WITHIN **TWO YEARS** AFTER THE CLAIM ACCRUES.

The amount claimed should be substantiated by competent evidence as follows:

(a) In support of the claim for personal injury or death, the claimant should submit a written report by the attending physician, showing the nature and extent of the injury, the nature and extent of treatment, the degree of permanent disability, if any, the prognosis, and the period of hospitalization, or incapacitation, attaching itemized bills for medical, hospital, or burial expenses actually incurred.

(b) In support of claims for damage to property, which has been or can be economically repaired, the claimant should submit at least two itemized signed statements or estimates by reliable, disinterested concerns, or, if payment has been made, the itemized signed receipts evidencing payment.

(c) In support of claims for damage to property which is not economically repairable, or if the property is lost or destroyed, the claimant should submit statements as to the original cost of the property, the date of purchase, and the value of the property, both before and after the accident. Such statements should be by disinterested competent persons, preferably reputable dealers or officials familiar with the type of property damaged, or by two or more competitive bidders, and should be certified as being just and correct.

(d) Failure to specify a sum certain will render your claim invalid and may result in forfeiture of your rights.

PRIVACY ACT NOTICE

This Notice is provided in accordance with the Privacy Act, 5 U.S.C. 552a(e)(3), and concerns the information requested in the letter to which this Notice is attached.

A. **Authority:** The requested information is solicited pursuant to one or more of the following: 5 U.S.C. 301, 28 U.S.C. 501 et seq., 28 U.S.C. 2671 et seq., 28 C.F.R. Part 14.

B. **Principal Purpose:** The information requested is to be used in evaluating claims.
 C. **Routine Use:** See the Notices of Systems of Records for the agency to whom you are submitting this form for this information.
 D. **Effect of Failure to Respond:** Disclosure is voluntary. However, failure to supply the requested information or to execute the form may render your claim "invalid."

PAPERWORK REDUCTION ACT NOTICE

This notice is solely for the purpose of the Paperwork Reduction Act, 44 U.S.C. 3501. Public reporting burden for this collection of information is estimated to average 6 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to the Director, Torts Branch, Attention: Paperwork Reduction Staff, Civil Division, U.S. Department of Justice, Washington, DC 20530 or to the Office of Management and Budget. Do not mail completed form(s) to these addresses.

LAW DEPARTMENT
NATIONAL TORT CENTER



CERTIFIED NO. 7020 3160 0001 3688 0984
RETURN RECEIPT REQUESTED

October 19, 2021

Diana Santa Maria, Esq.
Law Offices of Diana Santa Maria, P.A.
University Place-Suite 205C
5220 South University Drive
Fort Lauderdale, FL 33328

Re: Your Client: Eucal E. Watson
Date of Incident: April 24, 2020
USPS File No.: NT202112558

Dear Ms. Santa Maria:

This is in reference to the administrative claims your firm filed on behalf of your above-referenced clients under the provisions of the Federal Tort Claims Act as a result of injuries and damages allegedly sustained on April 24, 2020.

In considering this claim, we evaluated the information available to us regarding your client's alleged damages. However, the amount of money you are demanding far exceeds the reasonable settlement value of this matter. Accordingly, the above-referenced administrative claim is denied on the grounds that we were not able to reach a mutually satisfactory settlement.

In accordance with 28 U.S.C. § 2401(b) and 39 C.F.R. 912.9(a), if dissatisfied with the Postal Service's final denial of an administrative claim, a claimant may file suit in a United States District Court no later than six (6) months after the date the Postal Service *mails* the notice of that final action. Accordingly, any suit filed in regards to this denial must be filed no later than six (6) months from the date of the mailing of this letter, which is the date shown above. Further, note the United States of America is the only proper defendant in a civil action brought pursuant to the Federal Tort Claims Act and such suit may be heard only by a federal district court.

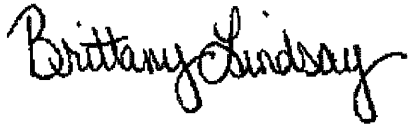
Alternatively, and in accordance with the regulations set out at 39 C.F.R. 912.9(b), prior to the commencement of suit and prior to the expiration of the six (6) month period provided in 28 U.S.C. § 2401(b), a claimant, his duly authorized agent, or legal representative, may file a written request for reconsideration with the postal official who issued the final denial of the claim. Upon the timely filing of a request for reconsideration, the Postal Service shall have six (6) months from the date of filing in

- 2 -

which to make a disposition of the claim and the claimant's option under 28 U.S.C. § 2675(a) shall not accrue until six (6) months after the filing of the request for reconsideration.

A request for reconsideration of a final denial of a claim shall be deemed to have been filed when received in this office.

Sincerely,

A handwritten signature in black ink that reads "Brittany Lindsay". The signature is written in a cursive, flowing style.

Brittany Lindsay
Tort Claim Examiner/Adjudicator

cc: Joe Gennaro
Tort Claims Coordinator
File No. 330-20-00473066A